

Annex 3 to Judgment No. 16.

ORDER

MADE ON AUGUST 20th, 1929.

1929.
August 20th.
File E. b. XX.*Before :*

MM. ANZILOTTI, <i>President,</i>	
HUBER, <i>Vice-President,</i>	
LODER,	
NYHOLM,	
DE BUSTAMANTE,	
ALTAMIRA,	} <i>Judges,</i>
ODA,	
PESSÔA,	
HUGHES,	
NEGULESCO,	

WANG,	} <i>Deputy-Judges,</i>

Count ROSTWOROWSKI, *Judge ad hoc.*

CASE CONCERNING THE JURISDICTION
OF THE INTERNATIONAL COMMISSION OF THE ODER

THE COURT,

composed as above,
after deliberation,

Having regard to Article 48 of the Statute,

Having regard to the Counter-Memorial filed on behalf of the Six Governments,

Having regard to the Memorial and Counter-Memorial filed on behalf of the Polish Government;

Having regard to the Order (evidence) made by the Court on August 15th, 1929;

Having heard the observations and submissions of the representatives of the Six Governments and of Poland;

Whereas, in their Counter-Memorial, the Six Governments request the Court to rule that the passages of the Polish

Memorial containing references to the records of the preparatory work of the Treaty of Versailles and quotations from these records are to be disregarded; as, in their oral observations, they have asked the Court to rule that no attention is to be paid to these passages or to certain passages in the Polish Counter-Memorial;

Whereas, in his oral observations and submissions, the Agent for the Polish Government has stated that he defers to "the wishes of the Six Governments to the effect that no account shall be taken of the passages in question" and that he "does not insist upon" making use of these passages in his defence, adding however that "the Polish Government reserves the right in the argument on the merits to avail itself of references to or citations from" the aforesaid preparatory work "in so far as it has already been made public";

Whereas three of the Parties concerned in the present case did not take part in the work of the Conference which prepared the Treaty of Versailles; as, accordingly, the record of this work cannot be used to determine, in so far as they are concerned, the import of the Treaty; as this consideration applies with equal force in regard to the passages previously published from this record and to the passages which have been reproduced for the first time in the written documents relating to the present case;

Whereas, in any particular case, no account can be taken of evidence which is not admissible in respect of certain of the Parties to that case;

Whereas, in the present case, the only preparatory work in question is that performed by the Commission on Ports, Waterways and Railways of the Peace Conference;

Rules that the Minutes of the Commission on Ports, Waterways and Railways of the Conference which prepared the Treaty of Versailles shall be excluded as evidence from the proceedings in the present case.

Done in English and French, the English text being authoritative, at the Peace Palace, The Hague, this twentieth day of August, one thousand nine hundred and twenty-nine, in eight copies, one of which is to be deposited in the archives

of the Court, and the others to be forwarded to the Agents of the Governments of Czechoslovakia, Denmark, France, Germany, His Britannic Majesty in Great Britain, and Sweden, as also to the Agent of the Government of Poland, respectively.

(Signed) D. ANZILOTTI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.